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STATE OF HAWAII

BUREAU OF CONVEYANCES

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DEC 26, 2007 12:00 PM

LAND COURT SYSTEM

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EKIMOTO & MORRIS, LLLC  
JOHN A. MORRIS, ESQ./alt  
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HONOLULU, HAWAII 96813-3410

Total pages: 5

G:\NA HALE O MAKENA\DOCS\amendment to declaration--opt-in.doc

Tax Map Key: (2) 2-1-7: 101

Condominium Map No. 3192

**AMENDMENT TO THE DECLARATION  
OF CONDOMINIUM PROPERTY REGIME OF NĀ HALE O MĀKENA**

WHEREAS, the Declaration of Condominium Property Regime of Nā Hale O Mākena dated November 20, 2000, was recorded in the Bureau of Conveyances of the State of Hawaii as Document No. 2000-166795 ("Declaration"), together with Condominium Map No. 3192 and any amendments thereto; and

WHEREAS, the property described in the Declaration was submitted to a Horizontal Property Regime established by Chapter 514, Hawaii Revised Statutes as amended (now Chapter 514B, Hawai'i Revised Statutes); and

WHEREAS, Section 514B-23, Hawaii Revised Statutes ("HRS"), empowers the Association to amend the Project documents, with the vote or written consent of a majority of the owners, to achieve any results permitted by HRS Chapter 514B; and

WHEREAS, at a duly called meeting of the Association of Apartment Owners of Nā Hale O Mākena held on February 8, 2007, a majority of the owners voted to "opt-in" to the provisions of HRS Chapter 514B by amending the Declaration;

NOW THEREFORE, the Declaration, as it may have been amended and/or restated, is hereby amended to "opt-in" to HRS Chapter 514B, as set forth below. To the extent that there is any conflict between the provisions of the Declaration and HRS Chapter 514B, the provisions

of the Declaration shall be subordinate to HRS Chapter 514B, including all approval requirements in HRS Chapter 514B. This amended version of the Declaration shall supersede the original Declaration and all prior amendments to the Declaration.

#### AMENDMENT

A new Paragraph 19 is added to the Declaration, to generally amend the Project documents to achieve any results permitted by HRS Chapter 514B, to read as follows:

#### 19. GOVERNING LAW

Notwithstanding anything to the contrary in the Project governing documents, including but not limited to the Declaration, Bylaws, House Rules, and Condominium Map:

(a) This Project shall be governed by the provisions of Hawaii Revised Statutes, Chapter 514B, as amended;

(b) Any apartment deed, and the Project's Declaration, Bylaws, House Rules, and Condominium Map shall be liberally construed to facilitate the operation of the Project under the law;

(c) Amendments to the Declaration and Bylaws, including but not limited to amendments relating to the alteration of the Project, shall require approval of 67% of the owners;

(d) Approval requirements of 75% for alterations to the common elements shall be reduced to 67%;

(e) Punitive damages may not be awarded except as provided in Hawaii Revised Statutes, Section 514B-10; and

(f) Approval requirements for leases or uses of the common elements shall be governed by Hawaii Revised Statutes, Section 514B-38.

Each of the undersigned officers of the Association warrants and represents that he or she is legally authorized to enter into this Amendment on behalf of the Association. The undersigned officers of the Association hereby certify that the above amendment was adopted by the vote of a majority of the unit owners at a duly noticed meeting of the Association held on February 8, 2007.

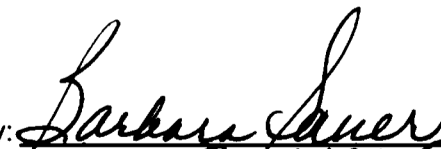
The officers of the Association agree that this Amendment may be executed in counterparts, each of which shall be deemed an original, and those counterparts shall together constitute one and the same instrument, binding all the Parties, notwithstanding that all the Parties are not signatories to the original or the same counterpart.

*(The remaining portion of this page is intentionally left blank.)*

IN WITNESS WHEREOF, the undersigned have executed this instrument on this  
17 day of August, 2007.

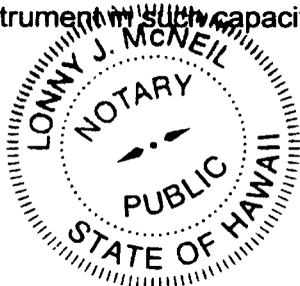
ASSOCIATION OF APARTMENT OWNERS OF  
NĀ HALE O MĀKENA, a Hawaii nonprofit  
corporation

By:   
(Print name: Ronald P. Haak)  
Its: President

By:   
(Print name: BARBARA SAUER)  
Its: SECRETARY

STATE OF HAWAII Ruben  
COUNTY OF MAUI ) ss.

On this 17 day of August, 2007, before me personally appeared Ronald P. Haak, to me personally known, who, being by me duly sworn or affirmed, did say that such person executed the foregoing instrument as the free act and deed of such person, and if applicable in the capacity shown, having been duly authorized to execute such instrument in such capacity.



Lonny J. McNeil  
Print Name: \_\_\_\_\_  
Notary Public, State of \_\_\_\_\_  
My Commission Expires: \_\_\_\_\_

LONNY J. McNEIL  
NOTARY PUBLIC  
STATE OF HAWAII  
MY COMMISSION EXPIRES 7/27/2011 Jan

STATE OF HAWAII

COUNTY OF MAUI

On this 31 day of AUGUST, 2007, before me personally appeared BARBARA SAUER, to me personally known, who, being by me duly sworn or affirmed, did say that such person executed the foregoing instrument as the free act and deed of such person, and if applicable in the capacity shown, having been duly authorized to execute such instrument in such capacity.

Print Name: BARBARA SAUER

Notary Public, State of \_\_\_\_\_

My Commission Expires: \_\_\_\_\_



LONNY J. MCNEIL  
NOTARY PUBLIC  
STATE OF HAWAII  
MY COMMISSION EXPIRES 12/31/2010